

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Noemi Martin	Team: Team # 5	CCRB Case #: 201111864	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 09/12/2011 4:30 PM	Location of Incident: Jamaica Avenue and Parsons Boulevard	18 Mo. SOL 3/12/2013	Precinct: 103
Date/Time CV Reported Mon, 09/12/2011 7:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/15/2011 12:36 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Lapp	01940	949198	PBQ/S
2. Officers			PBQ/S

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Lapp	Force: PO Brian Lapp struck § 87(2)(b) with a baton.	A . Alleged Victim Uncooperative
B . Officers	Force: Officers struck § 87(2)(b) with batons.	B . Alleged Victim Uncooperative

Case Summary

On September 12, 2011, § 87(2)(b) filed this complaint with IAB via telephone, where it received Log Number 11-41681. On September 15, 2011, IAB referred this complaint to the CCRB.

On September 12, 2011, at approximately 4:30 p.m., § 87(2)(b) was involved in a dispute with her brother, § 87(2)(b) inside a Wendy's restaurant in the vicinity of Jamaica Avenue and Parsons Boulevard in Queens. § 87(2)(b) was arrested and placed in a police car. § 87(2)(b) went home to inform her mother of the situation. Approximately 35 minutes later, § 87(2)(b) received a phone call from § 87(2)(b) who said he was at § 87(2)(b) and alleged that officers hit him with batons (**Allegations A and B**). § 87(2)(b) stated that he had injuries to his back, face and ribs. § 87(2)(b) said that he was not under arrest.

§ 87(2)(g)

On September 16, 2011, a voicemail message was left for § 87(2)(b) and § 87(2)(b). On the same day, a please call letter was sent to § 87(2)(b). § 87(2)(b) did not provide a mailing address to IAB. Later that day, § 87(2)(b) was contacted and she stated that she wanted to wait to see if § 87(2)(b) was interested in pursuing this complaint. § 87(2)(b) stated that she was "taking a step back" and letting § 87(2)(b) make the decision. § 87(2)(b) stated that she would cooperate only if he did; if not, she would not pursue it on her own. On September 20, 2011, a second call was made to § 87(2)(b). There was no machine or voicemail to leave a phone message. Between September 21, 2011 and October 3, 2011, four additional calls were made to § 87(2)(b) without enticing a response. On September 23, 2011 and September 27, 2011, two additional calls were made to § 87(2)(b).

On September 27, 2011, § 87(2)(b) contacted the CCRB and stated that he did not wish to pursue this complaint, because he does not want to go to jail. After it was explained to him that we are a civilian agency and not part of NYPD or the criminal court system, § 87(2)(b) stated that he ran from the officers and has not been caught. He is scared that by cooperating, he may jeopardize his freedom. § 87(2)(b) stated that his lawyer advised him that he was facing felony charges and he was not sure if he should talk to the CCRB. § 87(2)(b) stated that he wanted to speak with his lawyer first to see what he advised and then contact the CCRB with his decision. On October 3, 2011, a final call and a final please call letter was sent to § 87(2)(b) without enticing a response. As of the date that this report was written, § 87(2)(b) has not contacted the CCRB and none of the letters have been returned via the United States Postal Service. On October 27, 2011, a search of the NYC Department of Correction website did not reveal that neither § 87(2)(b) nor § 87(2)(b) were currently incarcerated. It is therefore recommend that **Allegations A and B be closed as victim uncooperative.**

Team: 5

Investigator: _____ Noemi Martin October 27, 2011
Signature Print Date

Supervisor: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date